



Appeal Decision

Hearing held on 26 August 2026

Site visit made on 26 August 2026

by A Knight BA PG Dip MRTPI

an Inspector appointed by the Secretary of State

Decision date: 11th September 2026

Appeal Ref: 6008895

Twelve Acre Farm & Livery Moor Drove (East), Thetford, Norfolk IP26 4JU

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Barrett against the decision of King's Lynn and West Norfolk Borough Council.
 - The application Ref is 25/01933/F.
 - The development proposed is the permanent retention of mobile home and ancillary mobile unit housing customer w.c.s, office and tack room.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The description of development in the banner heading above was agreed by the parties at the Hearing. The version on the application form included the term 'retrospective/retention' which I have omitted as that is not a form of development.
3. Whilst the application form indicates that the development has not started, the submissions are clear that the mobile home and ancillary mobile unit are already in use at the site. I saw as much during my site visit.
4. Since the planning application was refused the appellant has become the owner of both the appeal site and the wider landholding edged in blue on the site location and layout plan.
5. A new National Planning Policy Framework (the Framework) was issued on 17 August 2026. The main parties were given the opportunity to comment on any implications for the appeal.

Background and Main Issue

6. The appeal site is a hardsurfaced area within the wider landholding along with the access from the road. The landholding, which is largely split into paddocks containing simple field shelters, is used for the appellant's equine care and livery business following a previous grant of planning permission¹ (the previous permission). This allowed the permanent use of the landholding and appeal site for the equine business. It also allowed the mobile home and ancillary unit subject of this appeal, but on a temporary basis.

¹ Application Ref 20/00366/FM

7. The date by which condition 1 of the previous permission required the mobile home and unit to be removed has now passed.
8. The parties agreed at the Hearing that the site, which is within the open countryside outside the settlement boundary for Hockwold cum Wilton, is subject to policies seeking to avoid isolated new homes in the countryside other than in circumstances set out within those policies. These include there being an essential need for residential occupation by a rural worker that cannot be met by existing accommodation.
9. The Council has no objection to the ancillary unit, which it accepts to be necessary for the approved land use. I see no reason to take a different view and focus hereafter on the mobile home. This is in residential use and occupied by the appellant and his family.
10. Given the above, the main issue is whether there is an essential need for a rural worker to live in the countryside permanently at or near the appeal site and, if so, whether that need justifies the permanent retention of the mobile home.

Reasons

Policy context

11. The reason for refusal refers to Policy LP36 of the King's Lynn and West Norfolk Local Plan (2025) (the Local Plan). This addresses the housing needs of rural workers and provides a potential exception to the strategic policies of the Local Plan which generally seek to prohibit isolated dwellings in the countryside.
12. Policy LP36 allows new permanent dwellings to support existing rural based activities on well-established rural based enterprises, but only upon the satisfaction of three criteria. These are (firstly) that there be a clearly established existing functional need for occupants to be adjacent to their enterprises day and night; (Secondly) that the need could not be met by existing dwellings within the locality; and (thirdly) a demonstration of the financial viability of the enterprise.
13. In the Hearing, both parties were content that the new Framework did not materially alter the policy context. I see no reason to find otherwise. The appeal proposal does not evidently have the support of Framework Policy S5, and Policy HO11 seeks to avoid isolated homes in the countryside unless there is an essential need for a rural worker to live permanently at or near their place of work in the countryside.
14. Taking all of this into account I see no material inconsistency between the Local Plan and the Framework for the purposes of the appeal and proceed to assess the proposal against the three requirements of Policy LP36.

Functional need

15. The appellant sets out seven activities comprising his overall business enterprise; Liverys (DIY and full), hay bailing, and the keeping of ewes, a stallion, 3 brood mares, and 2 horses for personal use. In the Hearing he accepted that given their low numbers at present, the ewes did not present a functional need for residential occupation of the appeal site.

16. The hay bailing takes place away from the appeal site at several locations in the wider area. The appellant's case that this presents a need to live at the site is focussed on the fear of machinery theft.
17. Regarding this, and the wider point of crime and security, I have no evidence that the site is at any particular risk. I accept the appellant's point that his having lived at the site since commencing the business has helped to guard against crime, but that in itself is not evidence that such a risk exists to any notable degree.
18. I have nothing before me to show crime rates in the local area, or in respect of comparable sites or land uses across the wider area. I also have no evidence that arrangements could not be made to safely store valuable equipment elsewhere. Overall, neither the risk of crime nor the hay bailing element of the business evidently result in a functional need to occupy the appeal site.
19. Regarding the two horses kept for personal use; Policy LP36 supports dwellings outside of settlements for rural workers in relation to rural-based enterprises. That is to say, dwellings connected to a commercial undertaking. I do not doubt the benefits of being able to regularly check on the wellbeing of these two animals, but that does not present a functional need to occupy the appeal site for the purposes of the policy, as there is no commercial element to that activity.
20. Whilst I do not doubt that the appellant has a formal duty of care for the animals at the site, his written submissions do very little to show that this duty, in itself, necessitates residential occupation. I heard from the appellant that a distressed animal will emit a distinct sound, particularly noticeable in the quiet of the nighttime. This, I was told, will often have the effect of activating the other animals and, in either event, the appellant and his partner will usually be woken from their sleep by the noise and administer care. I was told that this occurs approximately once a week on average.
21. I have little independent evidence that being roused from sleep in this way is an established or reliable method of mitigating the risks of overnight equine illness or injury. The distance between the appeal site and the northernmost paddocks of the landholding does little to assuage my doubts; It is neither evident nor obvious that any sound an animal might emit would, over that distance, wake a person from their sleep.
22. Having said that, the Council made its decision based on the appellant having only 2 full liveries and 14 DIY liveries, and on the term 'DIY' indicating minimal care for the horse on the part of the appellant. Whilst this reasoning is clear, I nevertheless find that the livery business is in fact more demanding than that.
23. The number, which is not limited by the terms of the previous permission, has grown to some 15 DIY and 8 full liveries. The appellant informed me that it is common for him to provide additional services on an ad hoc basis to DIY livery customers and that, in any event, even his basic DIY service includes providing a night check, drinking water, and a general oversight of the animal.
24. Whilst not identified clearly in his written submissions, these additional services are not at odds with the general intention set out in the appellant's original business plan, as provided in support of the previous permission.

25. Whilst I do not accept that the appellant could rely on being woken from his sleep by an animal in distress, I have little reason to doubt that having checked on the animals throughout the day, he and his partner may anticipate an issue in advance and so be more alert to potential issues in the evening and nighttime. I have no reason to doubt the reported frequency of such events; Indeed, the number of horses at the appeal site, presently at some 27 before any foals or the appellants own horses are counted, appears sufficiently high that the need for late-hours observation and care may arise reasonably often.
26. I see no reason to question that the successful operation of the appellant's business is based in no small part on the assurance that he will be present overnight near the animals and that, as such, a continuous on-site presence is a commercial expectation and operational prerequisite. Delayed intervention in the event of a sudden veterinary emergency or distress would result in unacceptable risk to animal welfare that could only be met by a worker living permanently on the site.
27. Notwithstanding the parts of the appellant's case which I have not accepted, overall, I find the nature and scale of the appellant's business to generate an inherent essential need for a rural worker to live in the countryside permanently at or near the appeal site. That the appellant is also engaged in foaling, albeit to varying extents, only confirms me in this view.

Existing dwellings

28. At the southern end of the landholding is a barn containing a residential dwelling (the barn flat), which is occupied by the appellant's partner's mother. The dwelling was created without planning permission and was the subject of an enforcement notice served in November 2022. The notice was quashed at appeal as it lacked sufficient accuracy². The Council did not resume enforcement action and now considers the barn flat to be "lawful through the passage of time".
29. In the Hearing the Council explained that whilst an application for a certificate of lawfulness for the barn flat was refused in 2022³ it nevertheless contains sufficient evidence to show, to the Council's satisfaction, that immunity to enforcement action has accrued since then. As both parties agree the barn flat to be immune, and as I have no compelling evidence to the contrary, I proceed on the basis that it is.
30. In his statement of case the appellant explained that he could not occupy the barn flat as he did not own it. Since then, however, the appellant has bought the wider landholding including the barn flat, so the argument set out in his statement has fallen away.
31. I was informed in the Hearing that the presence of a sitting tenant prevents the appellant from occupying the barn flat. He provided a lease agreement drawn up by the previous landowner, and alluded to the legislative protection afforded to tenants and the accompanying challenges for landlords seeking to evict.
32. I do not doubt that such matters are subject to stringent regulations. Even so, I have no evidence that those regulations prevent evictions altogether, or that the

² Appeal Ref APP/V2635/C/22/3312973

³ Application Ref 22/01689/LDE

appellant has undertaken any steps whatsoever to gain occupation of the barn flat, let alone that any such attempts have been frustrated by legislation.

33. The lease agreement is stated to have been made on the “1st of June 500” and is unsigned. This undermines its credibility. Even if I look past these anomalies, the date on the front of the lease is 1 June 2024 and its given term is “12 months with the first option to renew thereafter”, leaving me uncertain as to whether it has, in fact, expired. The lease allows use of the barn flat “In accordance with planning and license permissions” yet, as described above, there is no planning permission for the residential use. It is unclear how the lease holds up in the face of this apparent contradiction. Taking these matters together, and whatever the legislative context, it is not evident that the lease restrains the appellant from taking occupancy of the barn flat.
34. The support of Policy LP36 is only available if the need to live at or near the site could not be met by existing dwellings within the locality. The reason for refusal questions whether the appellant is, in fact, able to live in the barn flat, and the Council’s submissions highlight the apparent flaws in the lease. The significance of these matters has, therefore, been made clear.
35. In this context, the appellant’s evidence is notably limited. There is little to demonstrate that meaningful attempts have been made to secure occupancy of the barn flat, or to prove that such accommodation could not ultimately be utilised.
36. The appellant informed me that sound from the animals was less audible in the barn flat than in the mobile home. As I have set out in the preceding section, I do not accept that he depends upon hearing the animals for their wellbeing, and so attach minimal weight to any differences in that respect between the barn flat and the mobile home.
37. A core element of the appellant’s case is that the Council has, by virtue of the original permission, already found his residential and business use of the site to be acceptable, subject to the performance over time of the latter. He contends that as the business is demonstrably viable, the pertinent test has been satisfied.
38. Even if I were to accept this formulation, circumstances have changed significantly since the previous permission in that the appellant now owns the barn flat. The proposal before me differs from that originally before the Council, as does the way it fares against Policy LP36. I do not consider that the Council’s decision to grant the original permission demonstrates the acceptability of the appeal scheme.
39. Overall, I see no reason to accept that the appellant could not occupy the barn flat and, therefore, no reason to accept that the essential need for a rural worker to live in the countryside permanently at or near the appeal site could not be met by existing dwellings within the locality. In this respect the appeal scheme fails to satisfy Policy LP36.

Financial viability

40. The appellant’s case in respect of financial viability includes his original business plan, and his business accounts for the year ending 31 March 2025. The latter encompasses turnover, expenditure, and profit for 2024 and 2025, and shows a net profit of some £22k and £16k per annum (p/a) respectively.

41. The Council directed me to an appeal at a site called White Dyke Farm⁴ in which the Inspector found that a business profit of some £17k p/a was insufficient to demonstrate financial viability. That, however, was based on the dwelling at the Farm having a value of some £450k, meaning that any independent party who might buy the site could not realistically hope to both pay the mortgage and earn enough to live on from the business profits.
42. The Council accepted during the Hearing that the appellant's business was different to that at White Dykes Farm in that, based on the figures provided, an independent party could take on his landholding and business and make enough to live on. This is partly because doing so would involve no equivalent to a mortgage for a £450k property.
43. The Council did, however, maintain its objection that the appellant's figures were unproven. The accounts show 'sales' of some £52k and £55k for the two years in question but provide no breakdown, so it is not clear how much of that income was generated by the approved use of the appeal site, much less by the activities which present a functional need for residential occupancy.
44. Even if, as the appellant informed me, it is standard accountancy practice to present turnover in this way, I see no reason why he could not have supplemented the accounts with a breakdown. Policy LP36 is concerned with the financial soundness of the rural business associated with the proposed permanent dwelling, rather than with any wider business the appellant may be engaged in. It is necessary, therefore, to establish that the 'sales' figures are evidently derived from the equine business undertaken at the landholding.
45. Furthermore; The original business plan anticipated income from three different levels of livery and set out the fee for each. However, when one multiplies the number of livery customers the appellant had at the time of the application by those fees, the resulting sum amounts to a figure considerably lower than the given 'sales' figures.
46. Whilst the appellant explained that the remainder of the 'sales' were made up, at least in part, by additional services offered to livery customers and by the sale of foals, there is little detailed evidence as to the value of either within the submissions. This is material in my determination, not least as the appellant accepted in the Hearing that profits from foaling were unpredictable and subject to fluctuations.
47. I also heard that the production and sale of haybales contributes to the business though, as I have set out above, I do not consider that to be an activity presenting a functional need for residential occupation of the appeal site.
48. The concerns listed above undermine confidence in the appellant's figures. That said, I see little reason to doubt that he currently has 15 DIY and 8 full liveries, as set out in his appeal statement. The Council does not dispute it, and whilst my site visit provided me with little more than a snapshot in time, my observations provided no reason to do so.
49. The appellant informed me that his prices have increased slightly since he produced the original business plan and, given the time that has passed, this

⁴ Appeal Ref APP/V2635/W/24/3351657

would be reasonable. Even if he had maintained his original prices of £30 a week (p/w) for a DIY livery and £65 p/w for a full grass livery, his current level of custom would generate just over £23k p/a from the DIY liveries and just over £27k p/a for the full liveries; That is to say, his current level of income appears comparable to the purported 'sales' figures for 2024 and 2025.

50. Regarding the appellant's 'expenditure' figures; He no longer pays rent for the landholding, which was a major outgoing in previous years. I was told that the cost of the land purchase was, per annum, less than the rent had been. Again, the point is unproven, but I see little reason to suspect that his costs on that front have increased. The cost of the mobile home is not demonstrably reflected in the accounts. Even so, I heard that its upkeep is covered by the sum attributable to maintenance and I have no reason to doubt that it should last for some years before the cost of replacing it becomes pertinent.
51. Taking the above into account, and as I was given no basis upon which to question the other 'expenditure' figures, it follows that a net profit of between £16k and £22k, as set out in the accounts, appears realistic based on the appellant's identifiable, if approximate, business income. Whilst the Council's concerns over the clarity of the appellant's case are reasonable, ultimately, I find there is enough evidence before me to demonstrate financial viability.
52. Overall, however, whilst I have found the business viable and there to be an essential need for a rural worker to live permanently at or near the appeal site, because of the existing dwelling within the appellant's land holding I have not found there is a need to retain the mobile home. As such, the appeal scheme fails to comply with Policy LP36 of the Local Plan and so does not benefit from an exception to the strategic presumption against new isolated homes in the countryside.

Other Considerations

53. The appellant explained the consequences, as he saw them, of the appeal being dismissed. However, I am not satisfied that the appellant would be made homeless or that their ability to operate the business would be affected, as it has not been demonstrated that the adjacent barn flat could not be occupied by the appellant and his partner.
54. I recognise that the business provides social and economic benefits. However, as it is not clear that he would cease to operate the business if the appeal were dismissed, it is also not clear that these benefits would be lost.
55. I do not doubt that the appellant has invested in the business. Of the three criteria within Policy LP36, this can only weigh in favour of the third; that the business is financially viable. I have accepted this already, and so need not consider the level of investment any further.

Conclusion

56. The Framework restricts development outside of settlements and resists isolated homes in the countryside, save for defined exceptions. As I have found that the appeal scheme does not comprise an exception, I also find that it is in conflict with the Framework. I have found no material inconsistency between the Local Plan and the Framework for the purposes of the appeal.

57. The proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it.
58. The appeal is dismissed.

A Knight

INSPECTOR

APPEARANCES

FOR THE APPELLANT:

Mr Bridges	Agent
Mr Barrett	Appellant
Miss Oliver	Appellant's Partner

FOR THE LOCAL PLANNING AUTHORITY:

Mrs Barrow	Planning Department
Miss Su	Planning Department